

Member ID: _____

Time: _____

Rank: _____



Business Law and Ethics (265)

STATE 2025

CONCEPT KNOWLEDGE:

Multiple Choice (50 @ 2 points each)

_____ (100 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Member must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

Multiple Choice Questions

Directions: Identify the letter of the choice that best completes the statement or answers the question.

1. After implementing a new filing system, you notice a decrease in efficiency. What is the first action to take?
 - A. Revert to the old system immediately without consultation.
 - B. Conduct a review to identify specific issues and potential improvements.
 - C. Insist on keeping the new system longer, assuming people just need time to adjust.
 - D. Blame the person who suggested the new system for the decrease in efficiency.
2. A client expresses confusion about the roles of different legal professionals within your firm. How do you clarify?
 - A. Provide a detailed legal dictionary for them to research each role.
 - B. Explain the roles and responsibilities of key team members they'll interact with.
 - C. Tell them not to worry about it and trust that everyone knows what they're doing.
 - D. Suggest they Google it to find the most accurate descriptions.
3. A heated debate arises during a staff meeting about a controversial case strategy. How should it be handled?
 - A. Let the most senior staff member decide without discussion.
 - B. Encourage open dialogue, allowing everyone to express their opinions before reaching a consensus.
 - C. End the meeting immediately to avoid conflict.
 - D. Vote on the strategy without discussing its merits or drawbacks.
4. During a client consultation, it becomes clear that their expectations are unrealistic. How do you address this?
 - A. Agree with whatever the client says to avoid confrontation.
 - B. Clearly explain the legal realities and work to set more achievable goals.
 - C. Tell them to find another lawyer if they don't like the reality.
 - D. Change the subject to avoid discussing their expectations.
5. You notice a pattern of clients asking similar questions about a particular legal process. What proactive step can you take?
 - A. Create a detailed FAQ section on your firm's website addressing common questions.
 - B. Tell clients to research their questions before coming to you.
 - C. Limit the amount of time you spend answering such questions.
 - D. Suggest clients hire a consultant for these types of questions.

6. How should a legal firm respond to negative online reviews that contain inaccuracies?
 - A. Ignore the reviews, hoping they will be buried by positive ones.
 - B. Respond professionally, clarifying any inaccuracies without revealing confidential information.
 - C. Threaten legal action against the reviewers for defamation.
 - D. Ask employees to write positive reviews to counter the negative ones.
7. A case study focuses on a situation where a state law conflicts with a federal statute. What constitutional doctrine will most likely resolve this conflict?
 - A. Dual federalism
 - B. The Supremacy Clause
 - C. States' rights
 - D. The Tenth Amendment
8. The term "ex post facto" law refers to a law that:
 - A. Changes the legal consequences of actions committed before the enactment of the law
 - B. Is applied retroactively to benefit the defendant
 - C. Governs the behavior of law enforcement agencies
 - D. Regulates interstate commerce
9. In the context of legal proceedings, "voir dire" is a process used to:
 - A. Challenge the admissibility of evidence
 - B. Determine the constitutionality of a statute
 - C. Select a jury
 - D. Appeal a lower court's decision
10. The legal term "res ipsa loquitur" is commonly used in which type of law?
 - A. Criminal Law
 - B. Contract Law
 - C. Tort Law
 - D. Family Law
11. In a "summary judgment," the court:
 - A. Accepts the case for a full trial.
 - B. Declares a recess in the proceedings.
 - C. Decides the case based on the presented evidence without a trial.
 - D. Summarizes the positions of both parties for the public record.

12. Ad litem refers to:
- A. A temporary legal restriction.
 - B. Representation for a party unable to defend themselves, such as a minor.
 - C. A law passed in the public interest.
 - D. A motion to dismiss a case for lack of evidence.
13. A "writ of certiorari" is:
- A. A formal dress code for court appearances.
 - B. A document transferring property ownership.
 - C. An order by a higher court to review the decision of a lower court.
 - D. A legislative bill requiring judicial review.
14. The "exclusionary rule" is a principle in:
- A. Contract law, excluding oral agreements in certain transactions.
 - B. Criminal law, preventing illegally obtained evidence from being used in court.
 - C. Corporate law, regarding the exclusion of liability clauses.
 - D. Immigration law, pertaining to the exclusion of non-citizens.
15. The legal status of a person who dies without having made a will is known as dying:
- A. Testate
 - B. Intestate
 - C. Unattested
 - D. Non compos mentis
16. The process of formally concluding a legal matter, such as a lawsuit or negotiation, especially in a way that all parties agree to, is known as:
- A. Settlement
 - B. Arbitration
 - C. Mediation
 - D. Adjudication
17. Which of the following is not a required element for a contract to be considered valid?
- A. Offer and acceptance
 - B. A written document
 - C. Consideration
 - D. Capacity to contract

18. The legal principle that contracts must be negotiated in good faith is part of:
- A. Criminal law
 - B. Contract law
 - C. Tort law
 - D. Property law
19. Which act regulates the collection, storage, and use of personal data by businesses?
- A. Data Protection Act
 - B. Consumer Credit Act
 - C. Fair Credit Reporting Act
 - D. Privacy Act
20. A legal agreement where one party agrees not to enter into or start a similar profession or trade in competition against another party is known as:
- A. Non-disclosure agreement
 - B. Non-compete agreement
 - C. Confidentiality agreement
 - D. Service agreement
21. The legal term for the cancellation of a contract from the beginning, as if it never existed, is:
- A. Rescission
 - B. Annulment
 - C. Dissolution
 - D. Abrogation
22. A legal document granting someone authority to act on another's behalf in legal or financial matters is known as a:
- A. Will
 - B. Power of attorney
 - C. Trust deed
 - D. Certificate of incorporation
23. An agreement between two or more parties to commit a crime or to do a lawful act by unlawful means is known as:
- A. Conspiracy
 - B. Collusion
 - C. Breach of contract
 - D. Tortfeasors

24. The legal responsibility for the maintenance and repair of a leased property typically falls on the:
- A. Lessee
 - B. Lessor
 - C. Property Manager
 - D. Co-tenant
25. In employment law, wrongful termination of an employee in violation of the law or an employment contract is referred to as:
- A. Unfair dismissal
 - B. Constructive discharge
 - C. Redundancy
 - D. Layoff
26. What is the legal term for a written defamatory statement?
- A. Slander
 - B. Libel
 - C. Disparagement
 - D. Vilification
27. The period within which a lawsuit must be filed or be permanently barred is referred to as the:
- A. Statute of Frauds
 - B. Statute of Limitations
 - C. Period of Discovery
 - D. Laches Period
28. The unauthorized entry into another person's land or property without permission is known as:
- A. Encroachment
 - B. Trespass
 - C. Invasion
 - D. Breach
29. Which principle is applied when a court uses decisions from past cases to resolve current disputes?
- A. Stare decisis
 - B. Mens rea
 - C. Actus reus
 - D. Ex post facto

30. What is the main purpose of antitrust laws?
- A. To enforce contracts
 - B. To regulate unfair competition
 - C. To protect consumer rights
 - D. To prevent monopolies and promote market competition
31. Which of the following does not qualify as intellectual property?
- A. A novel
 - B. A business idea
 - C. A musical composition
 - D. A logo
32. A legal condition in which a person is unable to pay their debts as they become due is known as:
- A. Insolvency
 - B. Bankruptcy
 - C. Default
 - D. Liquidation
33. The legal process through which the assets of a debtor are measured and used to repay the debts is known as:
- A. Bankruptcy
 - B. Liquidation
 - C. Solvency review
 - D. Asset allocation
34. The legal protection for the original works of authorship fixed in a tangible medium of expression is known as:
- A. Copyright
 - B. Patent
 - C. Trademark
 - D. Trade secret
35. What is the primary legal mechanism used to resolve disputes between labor unions and employers?
- A. Collective bargaining
 - B. Class action lawsuits
 - C. Mediation
 - D. Arbitration

36. Which of the following best describes a situation where a person can recover damages even if they were partially at fault?
- A. Comparative negligence
 - B. Strict liability
 - C. Contributory negligence
 - D. Tortfeasor's immunity
37. Which of the following is an example of an intangible asset?
- A. Real estate
 - B. Trademarks
 - C. Inventory
 - D. Machinery
38. What is the legal term for a minor who has been granted the ability to contract as an adult due to circumstances such as marriage or military service?
- A. Emancipated minor
 - B. Legal adult
 - C. Juvenile independent
 - D. Mature minor
39. An official document that protects an inventor's rights to his or her invention for a certain period is known as a:
- A. Trademark
 - B. Copyright
 - C. Patent
 - D. License
40. Which of the following is not a requirement for a document to be considered a negotiable instrument?
- A. It must be payable to the bearer or to order.
 - B. It must include an interest rate.
 - C. It must promise or order the payment of money.
 - D. It must be in writing and signed by the maker or drawer.
41. A situation where an individual retains possession but not ownership of property as security for a debt is known as:
- A. Mortgage
 - B. Lien
 - C. Pledge
 - D. Bailment

42. Making a statement in court under oath, which is known to be false, is termed as:
- A. Perjury
 - B. Contempt
 - C. Defamation
 - D. Slander
43. Some states protect reporters from being compelled to disclose confidential information or sources in court are known as:
- A. The shield law
 - B. The gag rule
 - C. Reporter's privilege
 - D. Freedom of the press
44. The unauthorized act of using another person's trademark or service mark is known as:
- A. Trademark dilution
 - B. Trademark infringement
 - C. Patent infringement
 - D. Copyright violation
45. In forma pauperis allows a party to:
- A. File a lawsuit without paying for filing fees due to indigence
 - B. Present a case in a foreign court
 - C. Appeal a decision without the usual legal formalities
 - D. Sure government officials without risk of retaliation
46. The legal obligation for one party to act in the best financial interest of another party, such as a financial advisor for their client, is known as:
- A. A fiduciary duty
 - B. A contractual obligation
 - C. A moral obligation
 - D. Professional ethics
47. Legislation designed to protect consumers from misleading and harmful advertising practices is known as:
- A. Consumer Protection Act
 - B. Truth in Advertising Law
 - C. Fair Advertising Standards Act
 - D. Unfair Commercial Practices Directive

48. The intentional destruction or alteration of documents to prevent them from being used in a trial is known as:
- A. Spoliation of evidence
 - B. Contempt of court
 - C. Document tampering
 - D. Obstruction of justice
49. The right of employees to have a safe and healthy workplace is mandated under:
- A. Occupational Safety and Health Act
 - B. Worker Compensation Act
 - C. Environmental Protection Act
 - D. Employment Standards Act
50. The legal defense claiming that the actions taken were necessary to prevent a greater harm is known as:
- A. Justifiable necessity
 - B. Self-defense
 - C. Defense of others
 - D. Defense of necessity